

# LW5638: CRIMINAL JUSTICE

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## Effective Term

Semester A 2025/26

## Part I Course Overview

### Course Title

Criminal Justice

### Subject Code

LW - Law

### Course Number

5638

### Academic Unit

School of Law (FL)

### College/School

School of Law (FL)

### Course Duration

One Semester

### Credit Units

3

### Level

P5, P6 - Postgraduate Degree

### Medium of Instruction

English

### Medium of Assessment

English

### Prerequisites

Nil

### Precursors

Nil

### Equivalent Courses

LW4638 Criminal Justice

### Exclusive Courses

Nil

## Part II Course Details

### Abstract

This course aims to provide students with an understanding and appreciation of the main features of the Criminal Justice system in Hong Kong; its mode of operation, the interaction between its principal agents, institutions and practices, and the

theoretical foundations underpinning those bodies and processes. This course will not only deal with the mechanical 'how' about the manner in which various Criminal Justice practices are conducted, but also with the philosophical and moral 'why' it should or should not continue to be conducted in a particular manner. To this end, the Criminal Justice practices in the pre-trial, trial and post-trial stages of the Hong Kong Criminal Justice System will be considered and juxtaposed with Criminal Justice practices from past time periods and cultures, as well as contemporary practices in other jurisdictions. This is necessary because it is only once we know and understand the origins and development of the various mechanisms, stakeholders and institutions of our own Criminal Justice system, and are able to reflect on the similarities and differences it has with Criminal Justice Systems of other jurisdictions, that we can critically evaluate and comment on its efficiency, reliability, and scope for improvement. The course takes a Discovery Enriched Curriculum to the assignment in the course, requiring students to write a reflective 3000 word assignment on visits in criminal matters to a Magistrates Court, the District Court the Court of First Instance and the Court of Appeal or the Court of Final Appeal.. In particular, students will be asked a question as to how, after examining the different court procedures, the criminal justice system can be improved in this area.

### Course Intended Learning Outcomes (CILOs)

| CILOs |                                                                                                                                                                                                                                                                                                                                                                                                             | Weighting (if DEC-A1 app.) |  | DEC-A2 | DEC-A3 |
|-------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|--|--------|--------|
| 1     | Analytically describe and explain:<br>- the Criminal Justice as a system of law enforcement, adjudication and correction, directly concerned with the apprehension, prosecution and control of those charged with criminal offences;<br>- the Criminal Justice System as it operates in Hong Kong;<br>- the principal institutions, practices and role-players in the Criminal Justice System of Hong Kong. |                            |  | x      |        |
| 2     | Examine and reflect on:<br>- some of the prevalent tensions inherent in Criminal Justice institutions and practices;<br>- the operations and interactions of the principal agencies of Criminal Justice, particularly in relation to Hong Kong;<br>- the key emerging issues in the provision and execution/administration of Criminal Justice.                                                             |                            |  | x      |        |
| 3     | Critically evaluate:<br>- the social and historical context of the main theories, models and concepts of Criminal Justice;<br>- the strengths and weaknesses of the Criminal Justice System in Hong Kong;<br>- the strengths and weaknesses of the Criminal Justice Systems in other jurisdictions.                                                                                                         |                            |  |        | x      |

#### A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

#### A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

#### A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

### Learning and Teaching Activities (LTAs)

|   | LTAs                                                                                                                           | Brief Description | CILO No. | Hours/week (if applicable) |
|---|--------------------------------------------------------------------------------------------------------------------------------|-------------------|----------|----------------------------|
| 1 | Lectures                                                                                                                       |                   | 1, 2, 3  |                            |
| 2 | Tutorials:<br>In-class discussion.<br>Namely, overall in-class discussion                                                      |                   | 1, 2, 3  |                            |
| 3 | Tutorials:<br>In-class group presentation<br>Namely, an in-class. presentation on a media related item relevant to the course) |                   | 1, 2, 3  |                            |
| 4 | An in class test                                                                                                               |                   | 1, 2, 3  |                            |
| 5 | A written assignment                                                                                                           |                   | 1, 2, 3  |                            |

### Assessment Tasks / Activities (ATs)

|   | ATs                                                      | CILO No. | Weighting (%) | Remarks ("- for nil entry) | Allow Use of GenAI? |
|---|----------------------------------------------------------|----------|---------------|----------------------------|---------------------|
| 1 | In-class discussion: 15%                                 | 1, 2, 3  | 15            | -                          | No                  |
| 2 | In-class group presentation: 10%                         | 1, 2, 3  | 10            | -                          | No                  |
| 3 | Written assignment: 30%                                  | 1, 2, 3  | 30            | -                          | No                  |
| 4 | In-class test: 45%<br>(duration: 2 hours, if applicable) | 1, 2, 3  | 45            | -                          | No                  |

### Continuous Assessment (%)

100

### Minimum Continuous Assessment Passing Requirement (%)

40

### Additional Information for ATs

The use of Generative AI tools is not allowed.

**Grading of Student Achievement:** Standard (A+, A, A-...F). Grading is based on student performance in assessment tasks / activities.

Students' achievements will be graded on the basis of their performance in assessment tasks/activities. The assessment for this course consists of the following components:

- Written assignment: 30% (Writing an assignment based on independent research.)
- In-class group presentation: 10% (Conducting a class presentation on a media related topic relevant to the curriculum.)
- In-class discussion: 15% (Contributions to discussions in class.)
- In-class test: 45% (A two-hour test to examine students' ability to understand, analyse, and evaluate the topics set out in the curriculum.)

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

To pass this course, students must obtain an aggregate mark of 50% and a minimum of 50% in each of the above assessment tasks/activities.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2023/24 and thereafter

To pass this course, students must obtain an aggregate mark of 40% and a minimum of 40% in each of the above assessment tasks/activities.

### **Assessment Rubrics (AR)**

#### **Assessment Task**

In-class group presentation (10 marks) (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

#### **Criterion**

Students need to obtain a minimum 40%

#### **Excellent**

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyze and synthesize, superior grasp of subject matter; evidence of a strong knowledge base and familiarity with the literature concerning the media item

#### **Good**

(B+, B, B-) Evidence of grasp of the subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues, evidence of a sound knowledge base and familiarity with literature concerning the media item

#### **Fair**

(C+, C, C-) Student is profiting from the university experience; understanding of subject; some reference to literature concerning the media item

#### **Marginal**

(D) Sufficient familiarity with the subject matter, weakness in critical and analytic skills; limited or irrelevant use of literature concerning the media item

#### **Failure**

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited or irrelevant use of literature concerning the media item

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#### **Assessment Task**

In-class discussion (15 marks) (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

#### **Criterion**

Students need to obtain a minimum 40%

#### **Excellent**

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyze and synthesize, superior grasp of subject matter; evidence of extensive knowledge base

#### **Good**

(B+, B, B-) Evidence of grasp of the subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues, evidence of knowledge base

#### **Fair**

(C+, C, C-) Student is profiting from the university experience; understanding of subject; ability to develop solutions to simple problems in the material

#### **Marginal**

(D) Sufficient familiarity with the subject matter, weakness in critical and analytic skills; limited or irrelevant use of literature

**Failure**

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited or irrelevant use of literature

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**Assessment Task**

Written assignment (30 marks) (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

**Criterion**

Students need to obtain a minimum 40%

**Excellent**

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyze and synthesize, superior grasp of subject matter; evidence of extensive knowledge base

**Good**

(B+, B, B-) Evidence of grasp of the subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues, evidence of knowledge base

**Fair**

(C+, C, C-) Student is profiting from the university experience; understanding of subject; ability to develop solutions to simple problems in the material

**Marginal**

(D) Sufficient familiarity with the subject matter, weakness in critical and analytic skills; limited or irrelevant use of literature

**Failure**

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited or irrelevant use of literature

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**Assessment Task**

In-class test (45 marks) (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

**Criterion**

Students need to obtain a minimum 40%

**Excellent**

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyze and synthesize, superior grasp of subject matter; evidence of extensive knowledge base and literature in relation to the test questions

**Good**

(B+, B, B-) Evidence of grasp of the subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues in relation to the test questions

**Fair**

(C+, C, C-) Student is profiting from the university experience; understanding of subject; ability to develop solutions to simple problems in relation to the test questions.

**Marginal**

(D) Sufficient familiarity with the subject matter, weakness in critical and analytic skills in relation to the test questions.

**Failure**

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills in relation to the test questions.

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**Assessment Task**

In-class group presentation (10 marks) (for students admitted from Semester A 2022/23 to Summer Term 2024)

**Criterion**

Students need to obtain a minimum 50%

**Excellent**

(A+, A, A-) High

**Good**

(B+, B) Significant

**Marginal**

(B-, C+, C) Moderate

**Failure**

(F) Inadequate

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In-class discussion (15 marks) (for students admitted from Semester A 2022/23 to Summer Term 2024)

**Criterion**

Students need to obtain a minimum 50%

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(A+, A, A-) High

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**Failure**

(F) Inadequate

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Written assignment (30 marks) (for students admitted from Semester A 2022/23 to Summer Term 2024)

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**Failure**

(F) Inadequate

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## Part III Other Information

**Keyword Syllabus**

Part A: The Nature of Crime, Law, and Criminal Justice

- Introduction to Criminal Justice
- The Criminal Justice System of Hong Kong

Part B: Police, Policing and Law Enforcement

- An International Perspective on Policing
- The Hong Kong Police Force (HKPF)
- Specific Issues Related to the Investigation and Policing of Crimes

Part C: Courts and Adjudication

- The Prosecution of Crime
- Systems of Trial and its Key Role-Players
- International and Transnational Criminal Justice

Part D: Corrections and Alternative Sanctions

- An International Perspective on Corrections
- The Correctional Services Department of Hong Kong (CSD)
- Juvenile Justice; Diversion; Specialised Courts; Justice for Mentally Ill Offenders; Crime Prevention etc.

Part E: Competing Perspectives and Future Directions in Criminal Justice

**Reading List**

**Compulsory Readings**

| Title |     |
|-------|-----|
| 1     | Nil |

**Additional Readings**

| Title |                                                                                                                                                                       |
|-------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1     | Prescribed Text(s)                                                                                                                                                    |
| 2     | Chui, Wing Hong & Lo, T. Wing (eds.) Understanding Criminal Justice in Hong Kong (2017) Routledge                                                                     |
| 3     | Further Recommended Reading                                                                                                                                           |
| 4     | Cross, Grenville I. & Cheung Patrick W.S. Sentencing in Hong Kong 8th Edition (2018) LexisNexis                                                                       |
| 5     | Gaylord, Mark S., Gittings Danny & Traver, Harold (eds.) Introduction to Crime, Law and Justice in Hong Kong (2009) Hong Kong University Press                        |
| 6     | Johnson, Herbert A., Wolfe, Nancy Travis & Jones, Mark History of Criminal Justice 4th Edition (2008) LexisNexis                                                      |
| 7     | Marsh, Ian (et al.) Criminal Justice: An Introduction to Philosophies, Theories and Practice (2004) Routledge                                                         |
| 8     | Mays, Larry G. and Rudell, Rick Making Sense of Criminal Justice: Policies and Practices 2nd Edition (2007) Oxford University Press                                   |
| 9     | McConville, Mike & Pils, Eva (eds.) Comparative Perspectives on Criminal Justice in China (2013) Edward Elgar Publishing                                              |
| 10    | Reichel, Philip L. Comparative Criminal Justice Systems: A Topical Approach 6th Edition (2013) Jones and Bartlett Learning                                            |
| 11    | Shahidullah, Shahid M. Comparative Criminal Justice Systems: Global and Local Perspectives (2014)                                                                     |
| 12    | Alison Liebling, Shad Maruna and Lesley McAra (Eds) The Oxford Handbook of Criminology (Oxford, United Kingdom: Oxford University Press 2017)                         |
| 13    | Wong, Kam C. Policing in Hong Kong (2012) Ashgate e-Book                                                                                                              |
| 14    | The Secretary for Security, The Rules and Directions for the Questioning of Suspects and the Taking of Statements, issued by the Secretary for Security, 2nd Oct 1992 |
| 15    | Department of Justice, The Statement of Prosecution Policy and Practice, accessible through the Department of Justice website.                                        |
| 16    | Department of Justice, The Victims of Crime Charter, accessible through the Department of Justice website.                                                            |